

Stereo HCJ DA 38

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.169196 of 2018

Noor-un-Nisa etc

V/S

United Bank Limited etc

JUDGMENT

Date of hearing	15.10.2020
Petitioner(s) by	Mian Javed Iqbal Arain, Advocate.
Respondent(s) by	Rai Shahid Saleem Khan, Advocate. Sh. Sajid Mahmood, Advocate. Mr. Ali Awais, Advocate. Mr. Moeen Ahmad, Advocate. Mr. Adnan Afzal, Legal Head UBL.
Research Assistance By	Muhammad Kashif Pasha and Hamid-ul-Rehman Nasir, Research Officers of Lahore High Court Research Center.

*“Life, liberty, **property**, and the equal protection of the law, grouped together in the Constitution, are so related that the deprivation of any of those separate and independent rights may lessen or extinguish the value of the other three”*

Smith v. Texas, 233 U.S. 630, 636 (1914)
J. Joseph Rucker Lamar, US Supreme Court

JAWAD HASSAN,J. This judgment will decide the longstanding forty (40) years legal dispute between the Petitioners and the United Bank Limited/ Respondent No.1 which has been going on since 1980 and has gone through an influx of legal proceedings initiated by both the parties on multiple legal *fora* including the Hon'ble Supreme Court of Pakistan which decided the issues between the same parties in "UNITED BANK LIMITED and others Versus NOOR-UN-NISA and others" (2015 SCMR 380).

A. SUBJECT OF THE LITIGATION

2. To decide the instant *lis*, it will be advantageous to know about subject of litigation between the parties. It is a property situated at 47,

Shahrah-e-Quaid-e-Azam, (The Mall) Lahore and comprising upon 2-Kanals, 10-Marlas and 206 Sq. Feet land, consisting of four storied building commonly known as "National House" (hereinafter to be referred as "the property"), Ground Floor which is in possession of the Petitioners. The property is bounded as follows:--

- | | | |
|-----|-------|--------------------------------|
| (1) | East | ADBP. |
| (2) | West | Chartered Bank. |
| (3) | South | The National Bank of Pakistan. |
| (4) | North | The Mall |

B. BACKGROUND

3. Succinctly, this constitutional petition is directed against the order dated 17.04.2017 passed by Special Judge (Rent), Lahore rejecting the application of Petitioners seeking leave of the court to defend the ejectment petition filed by the Respondent No.1 with respect to the property and accepting the ejectment petition and also impugned the judgment dated 29.11.2017 of learned Additional District Judge, Lahore, dismissing the appeal filed by the Petitioners against ejectment order of Special Judge (Rent), hence this petition.

C. PETITIONERS' ARGUMENTS

4. Learned counsel for the Petitioners argued that both the Courts below have no jurisdiction to deal with the matter because in the ejectment petition filed by the Respondent No.1 under Sections 15 & 19 of the Punjab Rented Premises Act, 2009 (the "*Act*") does not mention any tenancy agreement between the Petitioners and the Respondent No.1 to establish the relationship of landlord and tenant

between the parties. He further argued that under Section 15 of the Act, there has to be a relationship of landlord and tenant, before assuming the jurisdiction by the Special Judge (Rent). He next argued that the Petitioners filed an application for leave to contest under Section 22 of the Act by disclosing sufficient grounds for production of evidence but the Special Judge (Rent) without granting leave to contest to the Petitioners, accepted the ejectment petition of the Respondent Bank. He submits that in the rent proceedings, question of title is irrelevant and only point requiring determination of the Court would be the relationship of landlord and tenant which is totally missing in the impugned judgments passed by both the Courts below. He further submitted that it is also admitted fact that earlier the Petitioners were proceeded against under Urban Rent Restriction Ordinance, 1959 and an order of ejectment was also obtained by the Respondent bank and as per law said order had the force of decree as such the Respondent No.1 was required to file execution petition for implementation of that order. But the Respondent No.1 had failed to do so, resultantly execution of said order had become barred by limitation and no fresh ejectment petition maintainable. That ejectment petition was filed by an unauthorized person but courts below have failed to take notice of this fact. That it is settled law that any decision which is against the facts or norms of law is liable to be set aside. In support of his contentions, he has placed reliance upon “FAZAL RAZIZ Versus Haji SHER ZAMAN and 2 others” (2016 MLD 121) and “AMIN and others Versus Hafiz GHULAM MUHAMMD and others” (PLD 2006 SC 549).

D. RESPONDENTS ARGUMENTS

5. Conversely, learned counsel representing the Respondent Bank has vehemently refuted the arguments advanced by learned counsel for the Petitioners. He argued that the Respondent Bank is owner and landlord of the property. Longstanding and infinite litigation also ended in favor of the Respondent No.1. That, Petitioners have not apprised the Court with real facts of the case. That actually, the property was originally owned by the National Bank of Lahore (a banking company incorporated in New Delhi). That, said National Bank, being lawful owner, sold the building vide a registered sale deed dated 28.06.1965 to Commerce Bank Ltd. Pakistan in the year 1974. After merger of the Commerce Bank Ltd. with the Respondent UBL under the Banks Nationalization Act, 1974, all assets and liabilities of Commerce Bank devolved upon and were taken over by UBL, including the building in dispute. That, on 08.10.1980, the Respondent Bank filed eviction petition under the West Pakistan Rent Restriction Ordinance, 1959 against one Ali Saad Abbasi, predecessor of the petitioners, on the grounds of default of rent @ Rs.75/- per month since July, 1978 and for personal bonafide need. That the predecessor of the Petitioners died during the proceedings and his legal heirs i.e. the present Petitioners were impleaded as party, who contested the ejectment proceedings. It is further submitted that in the said proceedings, sole issue was framed on the point as to whether there was relationship of landlord and tenant between the parties. Both the parties led their evidence in support of their respective contentions.

The Rent Tribunal accepted the contention of the Respondent No.1 and passed the ejectment order. He further argued that Petitioners filed suit seeking declaration of their entitlement regarding a portion of the property, which suit was decreed by trial Court but finally dismissed by the August Supreme Court and the review petition of Petitioners against that order has also been dismissed. Hence order of the August Supreme Court of Pakistan has attained finality. He also argued that the tenancy is oral and the same has expired as such the Petitioners are under legal obligation to vacate the property after decisions of the Court. He further argued that the Respondent No.1 is entitled for recovery of arrears of past rent from the Petitioners. Learned counsel maintained that there are concurrent findings of facts recorded by both the courts below which are based on proper appraisal of evidence so the same cannot be interfered with in the exercise of constitutional jurisdiction by this Court. Reliance was placed on “MIRZA BOOK AGENCY through Managing Partner and others Versus ADDITIONALDISTRICT JUDGE, LAHORE and others” (2013 SCMR 1520), “NADEEM ZAFAR and others Versus MUHAMMADISMAEEL and others” (PLD 2012 Lahore 178) and “Hafiz MUHAMMAD SHAHID NAWAZ Versus Hafiz MUHAMMAD SAEED” (2010 CLC 1941). Lastly, he prayed for dismissal of the writ petition

6. I have heard learned counsels for both the sides at considerable length and also perused the record with their assistance.

E. EPITOME OF ERSTWHILE LITIGATION BETWEEN THE PARTIES.

7. Before deciding the *lis* in hand, it would be of great advantage to have a glimpse of earlier rounds of litigation between the parties. It emerges from the record that the parties have already faced two rounds of litigations regarding the disputed property over the period of forty (40) years. Erstwhile rounds of litigation between the parties started in year 1980 when Respondent No.1 had filed ejectment petition on 08.10.1980 which was finally decided in favor of Respondent No.1 on 26.03.1988 and this decision was upheld by learned Appellate Court vide order dated 14.12.1988. Further, Writ Petition filed by the Petitioners against these concurrent finding was also dismissed by this Court through order dated 21.11.1993 and this order, as per version of Respondent No.1 had attained finality as same was not assailed by the Petitioners. In the second round of litigation, the Petitioners filed a civil suit seeking declaration of the court in their favor regarding ownership over the property under litigation bearing No. S-19-R/52 on the basis of P.T.O. dated 05.01.1961 and P.T.D. dated 20.12.1962 executed in their favor by Settlement Department. The said suit was decreed in their favor by the Civil Court vide judgment dated 16.10.2000. However, the appeal against that order, filed by the Respondent No.1 was accepted by Appellate Court vide its judgment dated 14.05.2009 and case was remanded to the trial court. Being aggrieved from this remand order, Respondent No.1 had filed CPLA in August Supreme Court, which was accepted vide judgment dated

07.01.2015 declaring the property under litigation to be non-evacuee property and alleged PTO and PTD in favor of the Petitioners were declared forged and fabricated prepared with the connivance of the Settlement Department. The Respondent No.1 was admitted to be landlord of the property, it was held that the relationship of landlord and tenant between the parties was established through the evidence led by the parties before the Rent Controller in the earlier ejectment petition and an ejectment order was accordingly passed against the Petitioners on 26-3-1988, which was also upheld by the Appellate Court of District Judge, Lahore vide its order dated 14.12.1988 and the Writ Petition No.2849 of 1989, filed by the Respondents against these two orders was also dismissed on 21.11.1993. So, the order of eviction against the Respondents and in favour of the Petitioners attained finality.

F. NUB OF THE MATTER

8. Moot points before this Court are:

- i. *Whether matter regarding ownership of the property has already been settled?*
- ii. *Whether relationship between the parties is of landlord and tenant?*

G. DETERMINATION BY THE COURT.

Issue No.1

9. Both the parties claim their ownership over the property. The Petitioners claim that they are in possession of the property being owners of the same as it was allotted to their predecessor in year 1961

by the Settlement Authorities through Provisional Transfer Order (PTO) and Permanent Transfer Deed (PTD) executed in his favor on 05.01.1961 and 24.10.1962, respectively.

10. Conversely, controverting the claim of Petitioners, the Respondent No. 1 claims to be the owner of the property by contending that the property was originally owned by the National Bank of Lahore (a banking company incorporated in New Delhi). That, said National Bank, being lawful owner, sold the building vide a registered sale deed dated 28.06.1965 to Commerce Bank Ltd Pakistan and in the year 1974, merger of the Commerce Bank Ltd with the Respondent UBL under the Banks Nationalization Act, 1974, all assets and liabilities of Commerce Bank devolved upon and were taken over by UBL, including the building in question.

11. Perusal of the record depicts that the issue regarding ownership over the suit property has already been settled by the August Supreme Court in Civil Appeals No.972 and 1060 of 2009. A civil suit for declaration regarding entitlement of the property was filed by the Petitioners, which was decreed by the trial court but remanded by the Appellate Court on technical grounds. Against the order of remand, Respondent bank has filed CPLA in August Supreme Court and the August Court after obtaining reports from the concerned quarters, has decided the matter in favor of the UBL/Respondent No.1 and dismissed the suit of the Petitioners by declaring the Respondent No.1 as owner of the property. Judgment of the August Court is also reported as “UNITED BANK LIMITED and others Versus NOOR-UN-NISA and

others” (2015 SCMR 380). Relevant paragraphs, where august Court has discussed in detail and finally settled the issue inter-se the parties are reproduced as ready reference:-

16. From the bare reading of the contents of above paragraph, it is abundantly clear that the property under litigation is one and the same which is commonly known as "National House", admeasuring 2-kanals, 10-marlas and 206 sq. feet consisting of four storeyed building, bounded as detailed in the paragraph; ground floor whereof is in possession of the appellant and it is situated at 47, Shahrah-e-Quaid-e-Azam, (The Mall) Lahore. This fact is further confirmed from the description of the disputed property given in the two registered sale deeds dated 20-12-1942 and 28-6-1965 and its comparison with the above description of the disputed property given by the respondents.

12. As far as authenticity of PTO and PTD allegedly executed in favor of Petitioners by the Settlement Department regarding allotment of the property, is concerned the August Supreme Court has dealt with this aspect of the case in UBL case *supra* in para No. 18 and 19 and after detailed discussion has held that both these documents have no legal value. Relevant paragraphs of the UBL case *supra* are reproduced as ready reference in which the Supreme Court held as follows:

18. In addition to it, with the assistance of learned Senior ASCs for both the parties, we have also carefully gone through the investigation report dated 24-6-2003, as regards the genuineness or otherwise of the two alleged documents of title in favour of the respondents. This report, being based on the scrutiny and verification of the original record of the Settlement/Evacuee Department by a Committee headed by the Secretary (S&R) Board of Revenue, Punjab as its Chairman seems to be authentic,.

19. Independent of what has been highlighted in the above report we have also scanned the three documents, produced and relied by the respondents i.e. the order dated 19-7-1960 purportedly passed by the Deputy Settlement Commissioner-I, Lahore, the Provisional Transfer Order (PTO) dated 5-1-1961 and the Permanent Transfer Deed (PTD) dated 20-12-1962 allegedly issued in the name of the predecessor of the respondents. Firstly, we have noticed that the said order do not form part of any record of the settlement department, for the reason that no file of Property No.S-19-R-52, The Mall, Lahore was ever opened or maintained in the settlement department for treating it as an Evacuee Property. Moreover, this order does not contain even the material particulars, the name of evacuee owner, the area of the property, its constructed area; its annual rental value as per DVL or any other document about the entitlement or status of respondents' predecessor being an evacuee. This order also seems to be contrary to the spirit of Settlement Scheme-1 (as mentioned in the PTD); how in the year 1960 the occupant of a portion of a building, having more than twelve other occupants, could be exclusively transferred the whole building under the said scheme without similar option of transfer to other occupants of the disputed property? Secondly, the PTO and PTD are also found blank in material particulars such as the name of the evacuee owner of the property, the assessed price of the property by the settlement department as per the policy in vogue; details of its payments, if any, made by the respondents' predecessor and its mode. Even the amount of public dues and scrutiny fee is not mentioned in the copy of PTD annexed with these appeals. All these material lapses in the purported title documents of respondents further lend support to the conclusion recorded in the report dated 24-6-2003 as reproduced and discussed above.

13. Furthermore, regarding nature of the property as to whether the property was an evacuee property or not, the August Supreme Court in UBL case *supra* has held as under:

20. Apart from the above, in order to ascertain the correct legal status of the original owner qua the status of disputed property, being evacuee or non-evacuee, we have also gone through the gazette notification dated 30-8-1961, various other orders, and the judgment dated 10-2-1976, passed in Writ Petition No.658 of 1959, which leave no further room for debate open as regards the status of original owner, and the disputed property, being non-evacuee property, which was validly purchased by the predecessor-in-interest of the appellant through the registered sale deed dated 28-6-1965...

21. When confronted with the above discussed documents, the learned Advocate Supreme Court for the respondents has again no defence to offer or to show that how a non-evacuee property which never formed part of the compensation pool, could have been transferred to the predecessor-in-interest of the respondents.

14. So, it was established before the Supreme Court that alleged allotment was not according to law and PTO and PTD executed in favor of Petitioners were of no legal value and were prepared wrongly, Petitioners cannot claim any benefit from their own wrong doing as is held by the August Supreme Court in a recent judgment titled as “SAKHI JAN and others Versus SHAH NAWAZ and another” (2020 SCMR 832) that:

“7.It will be against the administration of justice that benefit of wrong be given to a wrong doer and it would also be against the well-established maxim Nullus Commodum Capere Potest De Injuria Sua Propria (A person cannot benefit from his own wrong). In this regard, reference may be made to the judgment of this Court reported as Mian Muhammad Saeed and another v. The Province of West Pakistan and others (PLD 1964 SC 572)... ”

15. Therefore, the august Supreme Court of Pakistan through its judgment dated 07.01.2015, has settled the controversy between the parties regarding the ownership of the disputed property. It is painful to note that after exhausting the highest *fora* of this country, Petitioners are again agitating the same claim of ownership over the property. Maxim “*res judicata pro veritate occipitur*” provides that “*A decision which is once rendered by a competent court on a matter in issue between the parties after a full enquiry should not be permitted to be agitated over and over again.*” Furthermore, in catena of judgments, Superior Courts of our country have also held that there should be an end to controversies between the parties. For ready reference, some of the decisions are provided hereunder:

- i. We may add that public interest requires that there should be an end to litigation. **(2007 SCMR 1446)**
- ii. “...public policy demands that one cause should not be tried for the second time between the same parties and there must be an end to the litigation.” **(2017 YLR 1691)**
- iii. “It is settled law that the principle enshrined in the maxim “*Interest Reipublicae Ut Sit Finis Litium*”, meaning “in the interest of society as a whole, litigation must come to an end” is imbedded in and an integral part of the rule of law...” **(PLD 2016 Islamabad 1)**

16. Moreover, in a recent judgment titled as “President, All Pakistan Women Association, Peshawar Cantt. Versus Muhammad Akbar Awan and other” **(2020 SCMR 260)**” the Hon’ble Supreme Court of Pakistan has showed its concern regarding prolonged litigation in rent cases and has appreciated the direction of High

Court to proceed with the matter on day to day basis. Relevant paragraph of judgment of the Hon'ble Supreme Court is provided below:

“9. We also notice that the learned High Court made an effort to strike a balance in litigation pending before it considering that it is a rent matter and has been lingering for years where the rival claimants have filed multiple miscellaneous applications and the aggrieved parties have challenged them before all available fora which has resulted in the litigation dragging for years on end. Keeping this in mind, the learned High Court has directed the Additional Rent Controller, Peshawar Cantt. to proceed with the cases on daily basis and decide the same as early as possible.” (Underline is mine).

17. Under Article 189 of the Constitution of Islamic Republic of Pakistan, 1973, decisions of august Supreme Court are binding on all the courts subordinate to it when they decide the question of law and enunciated the principles of law. In catena of judgments Superior Courts have reiterated this principle and in case titled as “Shahid Pervaiz Versus Ijaz Ahmad and others” (2017 SCMR 206) august Court has held that even the obiter dicta of the August Supreme Court is of greater value. Relevant paragraphs of the judgment are provided below:

“105. Under Article 189, this Court is the court of last resort and laws declared or principles enunciated by it are binding on all the subordinate courts and authorities in Pakistan as reflected in Farhat Azeem v. Waheed Rasul (PLD 2000 SC 18)...

124.Even obiter dictum of the Supreme Court, due to high place which the Court holds in the hierarchy in the country enjoy a highly respected

position as if it contains a definite expression of the Court's view on a legal principle, or the meaning of law..."

18. Hence, the conduct of Petitioners is highly deprecated as they are all out to deny the Respondent No.1 Bank fruit of its hectic efforts of getting the decision of *lis* in its favor even from highest legal fora of our country. Resultantly, this moot point is decided in favor of Respondent No.1 and it is reiterated that Respondent Bank has successfully proved itself to be the owner of the property.

Issue No.2

19. The Petitioners contend that the property was allotted to their predecessor in year 1960 by the Settlement Authorities and they are not the tenants of the Respondent No.1 as alleged on its behalf. On the other hand, the claim of the Respondent No.1 is that the property is in its ownership and status of Petitioners is of its tenants and that is why Respondent has filed ejectment petition against them.

20. It is pertinent to mention here that regarding the property, Respondent No.1 had filed ejectment petition in year 1980 and trial court had decided in favor of Respondent Bank that relationship of landlord and tenant exist between the parties and appeal and Writ Petition against that decision were also dismissed by the District Judge and High Court, respectively. The relationship between the parties and order of eviction against the Petitioners became final as outcome of Writ Petition No. 2849 of 1989 was not assailed by the Petitioners on a

higher *fora*. This fact is also reiterated by august Supreme Court in its order dated 07.01.2015, UBL Case *supra* in following words:

“6. On 8-10-1980, the appellant filed an Eviction case against Ali Saad Abbasi, the predecessor-in-interest of the respondents, before the Court of Rent Controller at Lahore, on the grounds of default in the payment of rent at the rate of Rs.75 per month and their personal bona fide need. These proceedings, originally initiated against Ali Saad, wherein after his death respondents Nos.1 to 4 were joined as his successors-in-interest, remained pending for a considerable period (over twelve years), but during the whole period of litigation, at no stage of the proceedings, the respondents asserted claim of their adverse ownership over the disputed property. The relationship of landlord and tenant between the parties was, thus, established through the evidence lead by the parties before the Rent Controller and an ejectment order was accordingly passed against them on 26-3-1988, which was also upheld by the appellate Court of District Judge, Lahore vide its order dated 14-12-1988. The Writ Petition No.2849 of 1989, filed by the respondents against these two orders, was also dismissed on 21-11-1993. Therefore, the order of eviction against the respondents and in favour of the appellant attained finality.”

21. After the judgment of the Hon’ble Supreme Court in UBL case *supra* wherein all the matters have been resolved including issue No.1, above, the Respondent No.1 filed ejectment petition under Sections 15 and 19 of the Act on 23.04.2016 which was duly contested by the Petitioners by filing application for leave to defend under Section 22 of the Act on 12.06.2016. The Respondent No.2/Special Judge Rent, Lahore after hearing the parties in detail and by relying the judgment of Hon’ble Supreme Court in UBL case *supra* dated 07.01.2015 has stated that the grounds raised by the Petitioners have

been decided and there is no new ground to be taken and to be decided and consequently, refused to grant leave to contest by ordering to handover the vacant possession of the demised premises to the Respondent No.1. The Petitioners being dissatisfied by the order dated 17.04.2017 passed by the Respondent No.2, filed an appeal before the Respondent No.3/Additional District Judge, Lahore on 17.05.2017. The Respondent No.3 vide detailed judgment dated 29.11.2017 again relied on the judgment of Hon'ble Supreme Court in UBL case *supra* and dismissed the appeal of the Petitioners by affirming the findings of the Respondent No.2.

22. So, it is evident that the relationship between the parties is well established to be of Landlord and tenant.

H. SUMMATION AND ANALYSIS BY THE COURT.

23. There are concurrent findings of facts recorded by both the learned courts below which apparently do not suffer any legal infirmity and this Court in “SAJIDA ANWAR Versus ADDITIONAL DISTRICT JUDGE and others” (2018 YLR 1713) has given its view on the above issue. The Petitioners have failed to point out any misreading and non-reading of evidence by the courts below, while arriving at their conclusion and directed the eviction of the Petitioners from the Property. The constitutional jurisdiction is always exercised with great care and caution in such matters as the same cannot be used as a substitute for an appeal neither the evidence duly appreciated by the learned courts below can be re-appraised on the ground that different opinion can also be formed in writ jurisdiction. However, the appraisal

of evidence is the function of courts below and if the findings are based on proper appraisal of evidence then the same cannot be interfered with lightly in exercise of writ jurisdiction. The party approaching the High Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 has to demonstrate that there is some gross misreading or non-reading of evidence or any jurisdictional defect floating on the surface of the record but in the instant case all these preconditions are clearly missing. Reliance in this respect is placed upon “SHAJAR ISLAM Versus MUHAMMAD SIDDIQUE and 2 others” (PLD 2007 SC 45), wherein it has been held as under:-

“High Court in exercise of its Constitutional jurisdiction was not supposed to interfere in findings on controversial question of facts based on evidence, even if such finding was erroneous. Scope of judicial review of High Court under Article 199 of the Constitution in such cases was limited to the extent of misreading or non-reading of evidence or if finding was based on no evidence, which might cause miscarriage of justice. It was not proper for High Court to disturb finding of fact through reappraisal of evidence in Constitutional jurisdiction or to exercise such jurisdiction as a substitute of revision or appeal. Interference of High Court in concurrent findings of fact by the Courts regarding existence of relationship of landlord and tenant between the parties was beyond the scope of its jurisdiction under Article 199 of the Constitution.”

24. In a recent judgment passed by Hon’ble Supreme Court of Pakistan reported as “PRESIDENT, ALL PAKISTAN WOMEN ASSOCIATION, PESHAWAR CANTT. Versus MUHAMMAD AKBAR AWAN and others” (2020 SCMR 260), wherein it has been held that:-

“The High Courts exercising constitutional jurisdiction must be fully cognizant and conscious of this Rule and strictly adhere to the same in the interest of advancing the policy of law and delivering expeditious justice in accordance with the law and the Constitution. Even otherwise, constitutional jurisdiction is equitable and discretionary in nature and should not be exercised to defeat or bypass the purpose of a validly enacted statutory provision. This Court has repeatedly held to that effect in a number of cases including Mushtaq Hussain Bukhari v. The State (1991 SCMR 2136), Mohtarma Benazir Bhutto, MNA, and Leader of Opposition, Bilawal House, Karachi v. The State (1999 SCMR 1447), Mst. Seema Begum v. Muhammad Ishaq and others (PLD 2009 SC 45), and Muhammad Raza Hayat Hiraj v. Election Commission of Pakistan (2015 SCMR 233), Saghir Ahmad Naqvi v. Province of Sindh (1996 SCMR 1165) and Muhammad Iftikhar Mohmand v. Javed Muhammad (1998 SCMR 328).”

25. The judgments of the Apex Court and the Courts below were passed in consonance with the mandate of the Act which is to regulate the relationship between landlord and tenant regarding a rented premises. The landlord is defined under Section 2(d) of the Act whereas tenant is defined under Section 2(l) of the Act. The Respondent No.1 filed ejectment petition under Section 15 read with Section 19 of the Act with the concise statement of facts and the relief claimed alongwith relevant documents. It is to be noted that the Respondent No.1 filed ejectment petition by mentioning the facts and the judgments of the Apex Court, mentioned supra, which were binding to the parties as well as upon this Court under Article 189 of the Constitution as they have enunciated the principles of law and decided the question of law at length. The Respondent No.2 decided

the matter under Section 27 of the Act while the Respondent No.3 heard the appeal under Section 28 of the Act. The issues of the parties were resolved by the Courts below in two different rounds of litigation. Under the rule of law, the access to justice was provided to the parties; and the matter was decided as per guidelines of the Apex Court. The basic purpose of the Act is not only to decide the disputes in a timely manner but also to limit the frivolous litigation. Similarly Article 37-D of the Constitution mandates that the State shall provide inexpensive and expeditious justice. The Act was promulgated to provide a mechanism for the settlement of disputes in an expeditious, time specified and cost effective manner. It is also to be noted that the Tribunal has to decide the case under Section 27 of the Act within four months and if it fails to comply with mandate of Section 27 of the Act then it was to proceed on day to day basis. Similarly, Section 28(7) of the Act provides for Appellate Court to decide the lis within a period of two months. The law developed by the Hon'ble Supreme Court clearly requires that interference into the proceedings of Courts below should only be made if such Courts are found to have done sheer disregard of law and caused miscarriage of justice or deviated from the settled principles of law.

26. So, this Court is of considered view that both the Courts below have rightly accepted the contention of Respondent No.1 and directed the Petitioners to vacate the rented premises and to pay arrears of rent till eviction. Further, there are concurrent findings of facts recorded by both the courts below which are based on proper appraisal of evidence

so the same cannot be interfered with in exercise of constitutional jurisdiction. Guidance in this regard can be sought from the decisions of august Supreme Court in “Malik Muhammad Hussain Versus District Returning Officer and others” (2008 SCMR 488) and “Shamshad Begum Versus Mst. Huma Begum and others” (2008 SCMR 79).

I. DECISION OF THE COURT:

27. The nutshell of the above discussion is that the findings of both the courts below are in consonance with law calling for no interference in exercise of writ jurisdiction as Petitioners have failed to point out any illegality in reaching the order/judgment of both the courts below, warranting any interference by this Court, while exercising constitutional jurisdiction. This being so, the instant petition fails and is **dismissed** with no order as to costs.

**(JAWAD HASSAN)
JUDGE**

Approved for Reporting

JUDGE